

Track 1 — Chapter Build Pass

MPEP Chapter 1800 · Patent Cooperation Treaty (PCT)

Track 1 — Chapter Build Pass. Format: plain-English rule card → one worked example → one quiz question, per rule. A chapter close-out practice set and a memorize-this list follow, with all quiz answers consolidated in an Answer Key on the final pages. Read entirely offline — no interaction required.

Accuracy note: content is drawn from your uploaded MPEP file, translated into plain English. Spot-check anything with a specific legal test, number, or citation against your MPEP if precision matters for a specific question.

Overview: One Filing, Many Countries — But No Automatic Patent

PCT questions are heavy on deadline math (30 months from priority, 12-month priority period) and on the core conceptual point that PCT never itself grants a patent — it's a coordination mechanism feeding into each country's own national examination.

Rule 1: The Two Phases of a PCT Application (§1801)

PLAIN ENGLISH

A PCT (Patent Cooperation Treaty) application has an **international phase** (filing, international search, publication, and optionally international preliminary examination) followed by a **national/regional phase**, where the applicant must enter individual countries/regions (like the U.S.) to actually pursue examination and grant there. A PCT application itself never "becomes" a patent — it's a unified filing mechanism, not a global patent.

EXAMPLE

An applicant files one PCT application designating many countries. During the international phase, one international search report issues covering all designated states. To actually get a U.S. patent, the applicant must later separately enter the U.S. national stage.

QUIZ

Does a PCT application, by itself, ever issue directly as a granted patent?

- (A) Yes, PCT applications automatically become patents in all designated countries
- (B) No — the applicant must enter national/regional phase in each desired country for actual examination and grant
- (C) Yes, but only in the applicant's home country
- (D) No, PCT applications automatically expire after international phase

Rule 2: U.S. National Stage Entry Deadline (§1893)

PLAIN ENGLISH

To enter the U.S. national stage from a PCT application, the applicant must generally act before the expiration of **30 months** from the earliest priority date (submitting the required documents, fee, and — if not already in English — an English translation). This 30-month deadline is calculated from priority, not from the PCT filing date, if a priority claim exists.

EXAMPLE

A PCT application claims priority to an earlier national application filed January 1, 2024. The 30-month U.S. national stage deadline runs from that January 1, 2024 priority date — not from whenever the PCT application itself was later filed.

QUIZ

The 30-month U.S. national stage entry deadline is calculated from:

- (A) The PCT filing date always
- (B) The earliest priority date
- (C) The international publication date
- (D) The date of the international search report

Rule 3: The Receiving Office & International Filing Date (§1810)

PLAIN ENGLISH

A PCT application is filed with a **Receiving Office** (for U.S. applicants, typically the USPTO or the International Bureau), and it receives an **international filing date** once minimum requirements are met (indication it's a PCT application, designation of at least one state, applicant name, a description, and at least one claim). This international filing date is treated, in each designated state, as equivalent to a regular national filing date there.

EXAMPLE

An applicant files a PCT application with the USPTO as Receiving Office, meeting all minimum requirements. The resulting international filing date is treated as the effective filing date in every designated country once national phase is entered — a key benefit of the PCT system.

QUIZ

What is one legal effect of a properly accorded international filing date under the PCT?

- (A) It has no legal effect until national stage entry
- (B) It's treated as equivalent to a regular national filing date in each designated state
- (C) It only matters for search purposes, not filing date purposes
- (D) It replaces the need for national stage entry entirely

Rule 4: International Search Report & Written Opinion (§1840s)

PLAIN ENGLISH

Every PCT application undergoes an **International Search** by an International Searching Authority, producing an International Search Report (citing relevant prior art) and a Written Opinion on patentability. This gives applicants an early read on patentability before committing to the expense of entering multiple national phases.

EXAMPLE

After receiving an International Search Report and Written Opinion indicating the claims likely lack novelty over a specific reference, an applicant may choose to amend claims (during international phase, via Article 19 amendments to the claims, or Article 34 during optional preliminary examination) before deciding which countries are worth the expense of national phase entry.

QUIZ

What is the primary purpose of the International Search Report and Written Opinion?

- (A) To grant a patent directly
 - (B) To give the applicant an early assessment of patentability and relevant prior art before national phase decisions
 - (C) To replace national phase examination entirely
 - (D) To set the national stage entry deadline
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Rule 5: Priority Claims Under the PCT (§1828)

PLAIN ENGLISH

A PCT application can claim priority to an earlier-filed application (national or another PCT) under the Paris Convention, generally within **12 months** of that earlier filing (the standard Paris Convention priority period for utility/non-design applications) — this priority claim then sets the clock for the 30-month national stage deadline discussed above.

EXAMPLE

An inventor files a U.S. provisional application in January, then files a PCT application in the following December (within 12 months), claiming priority to the January provisional. The 30-month national stage clock then runs from the January provisional filing date, not the December PCT filing date.

QUIZ

What is the standard priority period for claiming priority to an earlier application in a PCT filing?

- (A) 6 months
 - (B) 12 months
 - (C) 18 months
 - (D) 30 months
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Chapter Close-Out: Mixed Practice Set

Mixing all rules above, in exam-style fact patterns. Answers are in the Answer Key at the end.

1. An applicant files a PCT application with a valid priority claim to an earlier national filing made 10 months prior. When does the 30-month U.S. national stage deadline expire, relative to the priority date?

- (A) 30 months from the PCT filing date
- (B) 30 months from the earlier priority date
- (C) 40 months from the priority date (30+10)
- (D) There is no deadline if priority is claimed

2. Does filing a PCT application, by itself, result in a granted U.S. patent?

- (A) Yes, automatically
- (B) No — U.S. national stage entry and examination are still required
- (C) Yes, if the International Search Report is favorable
- (D) No, PCT applications can never be pursued in the U.S.

3. What does the International Search Report help an applicant do?

- (A) Skip national phase entirely
- (B) Assess likely patentability and relevant prior art before committing to national phase costs
- (C) Automatically amend all claims
- (D) Extend the priority period

4. What is the standard Paris Convention priority period an applicant generally has to file a PCT application claiming priority to an earlier utility filing?

- (A) 6 months
- (B) 12 months
- (C) 24 months
- (D) 30 months

5. True or False: The international filing date of a PCT application has no legal significance until national stage entry occurs.

- (A) True
- (B) False

Memorize This: Key Tests & Terms

- PCT = filing/search coordination mechanism, **never itself grants a patent** — national/regional phase entry is always required.
- U.S. national stage entry deadline: **30 months** from the **earliest priority date** (not the PCT filing date).
- Standard Paris Convention priority period for utility filings: **12 months**.
- International filing date = **legally equivalent to a national filing date** in each designated state once granted.
- International Search Report + Written Opinion = early, strategic look at patentability, not a substitute for national examination.

Answer Key

All quiz answers for this PDF, in one place. Rule-card quizzes first, then the chapter close-out set.

Rule-Card Quizzes

Rule 1: The Two Phases of a PCT Application (§1801)

Does a PCT application, by itself, ever issue directly as a granted patent?

Answer: B

PCT is a filing and search/examination-coordination mechanism, not a grant mechanism — actual patents only issue after national/regional phase entry and examination in each country.

Rule 2: U.S. National Stage Entry Deadline (§1893)

The 30-month U.S. national stage entry deadline is calculated from:

Answer: B

The 30-month clock runs from the earliest priority date claimed, which may be earlier than the PCT application's own filing date — a commonly tested calculation trap.

Rule 3: The Receiving Office & International Filing Date (§1810)

What is one legal effect of a properly accorded international filing date under the PCT?

Answer: B

The international filing date carries real legal weight — it functions as the effective filing date once national phase begins in each designated country, which is the core value proposition of PCT filing.

Rule 4: International Search Report & Written Opinion (§1840s)

What is the primary purpose of the International Search Report and Written Opinion?

Answer: B

The search/opinion is informational and strategic — it helps applicants decide where national phase entry is worthwhile, not a substitute for actual national examination.

Rule 5: Priority Claims Under the PCT (§1828)

What is the standard priority period for claiming priority to an earlier application in a PCT filing?

Answer: B

12 months is the standard Paris Convention priority period for utility-type applications — don't confuse this with the separate 30-month national stage entry deadline, which is measured FROM that priority date, not a replacement for it.

Chapter Close-Out Quiz

1. (B)

The 30-month clock runs from the earliest priority date, not the PCT filing date — here, from the filing made 10 months before the PCT filing.

2. (B)

PCT filing alone never produces a granted patent anywhere — national/regional phase entry and examination are always required.

3. (B)

The Search Report and Written Opinion are strategic/informational tools for deciding where to pursue (and fund) national phase entry.

4. (B)

12 months is the standard Paris Convention priority period for utility-type filings.

5. (B) False

The international filing date carries real legal effect immediately — it's treated as the effective filing date in each designated state once national phase begins, not something that only matters after the fact.

End of Chapter 1800 (PCT). Next: Chapter 2200 (Citation of Prior Art / Ex Parte Reexamination).